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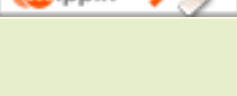
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OCTOBER 23, 2009

Paul Clement, 43, Celebrates His 50th (Argument)

King & Spalding threw a bash Thursday night for its star hire Paul Clement, on the occasion of his 50th oral argument before the Supreme Court, which he made Oct. 14. Not bad for a 43-year-old whose debut argument was in 2001. His first 49 were on behalf of the Bush Justice Department as deputy solicitor general from 2001 to 2005, then SG from 2005 to 2008. He joined K&S last November. (Stay tuned to NLJ.com for more on Clement's practice.)

No justices attended the party at the Willard InterContinental Hotel (he has cases pending, after all) but the chief justice's counselor Jeffrey Minear was there. Current SG Elena Kagan and former SGs Theodore Olson and Greg Garre, now with Gibson, Dunn & Crutcher and Latham & Watkins respectively, were on hand. So were many top appellate advocates and several lower court judges. Among the judges we spotted: Merrick Garland and Brett Kavanaugh of the U.S. Court of Appeals for the D.C. Circuit, Richard Linn of the U.S. Court of Appeals for the Federal Circuit, and Edward Damich of the U.S. Court of Federal Claims. (See photos below.)

Hiring Clement was the "holy grail" of the profession last year, said Wick Sollers, managing partner of the D.C. office, in remarks to the assembled crowd. "He was not the easiest catch in the world." Sollers did not say how much the firm paid to win Clement back -- reports of a \$5 million package have not been denied -- nor did he mention that Kirkland & Ellis was a leading rival in the competition for Clement's services. Clement had worked at both firms before going into government.

Deputy SG Edwin Kneedler, who boasts upwards of 105 Supreme Court arguments under his belt, said reaching 50 was "an astounding accomplishment" for someone so young. That milestone is often also a capstone, Kneedler said, but not for Clement. "Paul is one of the finest oral advocates of our time." Kneedler added that after the terror attacks of Sept. 11, 2001, "the department's focus in many ways changed," and Clement was able to manage the litigation side of it with great skill. Kneedler described Clement's notes-free argument style as "assurance without cockiness" that has gained the Court's respect.

Clement modestly doubted he deserved recognition for the fact that "I got up and did something for a number of times," but said it has been "a great privilege" to argue before the high court. He thanked his wife Alexandra and his three boys for the sacrifices they've made. "Fifty arguments translates into 100 weekends away from my family," Clement said. "That's two years of weekends." Clement said the best commentary about Supreme Court advocacy he's heard came from his mother, who watched his first oral argument in 2001. After it was over she said, "Boy, I thought you were getting beat up pretty bad, until the other guy got up!" (Photos by Tony Mauro.)



Above, Solicitor General Elena Kagan and former SGs Paul Clement and Theodore Olson.



Above, three of the appellate advocates attending Clement's reception. From left, David Frederick of Kellogg, Huber, Hansen, Todd, Evans & Figel; Maureen Mahoney of Latham & Watkins, and David Cole of Georgetown University Law Center.

Posted by Tony Mauro on October 23, 2009 at 12:03 PM in Supreme Court | Permalink
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